Arpee Electrical Private Ltd vs Bangalore Electricity Supply Company ... on 13 July, 2009

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Execution Petition No. 1 of 2009 in Appeal No. 47 of 2007

Dated: July 13, 2009

Present: Hon'ble Mrs. Justice Manju Goel, Judicial Member
Hon'ble Mr. H.L. Bajaj, Technical Member

M/s. Arpee Electrical Private Ltd. - Execution Petitioner(s)

Versus

Bangalore Electricity Supply Company Limited. & Anr. -Respondent(s)

Counsel for the Execution Petitioner(s) : none

Counsel for the Respondent(s) : Mr. Anand K. Ganesan &
Ms. Swapna Seshadri for R-1

ORDER

Mr. Anand K. Ganesan appearing for the respondent no. 1 says that the petitioner can withdraw the amount of Rs. 1, 78,292 which lies in deposit with the High Court of Karnataka and that if the amount has been kept in any interest bearing account, the appellant may also withdraw the interest amount that has accrued on it. The appellant is only required to make an appropriate application before the High Court of Karnataka.

2. In Para B of the relief paragraph, the petitioner has also asked for recalling our order dated 16th May, 2007. There is no provision in law under which such a relief can be granted. The Supreme Court has dismissed the appeal filed by the petitioner against the order dated 16th May, 2007. Hence, we cannot use even our review power against this judgment. Therefore, the prayer in paragraph 'B' of the relief paragraph is dismissed.

3. The execution petition is disposed of.

(H.L. Bajaj) (Justice Manju Goel)
Technical Member Judicial Member